

Infant Abandonment

Standard:

Texas law provides a responsible alternative to mothers who might otherwise abandon or harm a newborn child. It states that a parent may leave an unharmed infant, up to 60 days old, at any hospital, fire station or EMS station with "no questions asked."

Sec.262.302 of the Texas Family Code, states...(a) A designated emergency infant care provider shall, without a court order, take possession of a child who appears to be 60 days old or younger if the child is voluntarily delivered to the provider by the child's parent and the parent did not express an intent to return for the child. (b) A designated emergency infant care provider who takes possession of a child under this section has no legal duty to detain or pursue the parent and may not do so unless the child appears to have been abused or neglected. The designated emergency infant care provider has no legal duty to ascertain the parent's identity and the parent may remain anonymous. However, the parent may be given a form for voluntary disclosure of the child's medical facts and history. (c) A designated emergency infant care provider who takes possession of a child under this section shall perform any act necessary to protect the physical health or safety of the child. The designated emergency infant care provider is not liable for damages related to the provider's taking possession of, examining, or treating the child, except for damages related to the provider's negligence.

Purpose:

To Provide:

- Protection to infants that are placed into the custody of an EMS provider under this law.
- Protection to EMS systems and personnel when confronted with this issue.

Application:

1. Initiate patient assessment/care with appropriate Guideline(s) as needed.
2. If the event occurs at a (AFD or ESD) Fire Station, immediately contact EMS Communications for assistance.
3. Advise Supervisor of event.
4. Transport to an appropriate medical facility.
5. Communications should notify Department of Social Services of the event and transport destination.
6. An infant/child's age that is known or estimated at over 60 days old or, has been abused or neglected; must also include early notification of Law Enforcement.
7. Documentation of the event and any medical information provided for the infant/child by the parent must be included in the PCR/ePCR.